



Search:

☐ "Fabao" Window

Font Size: [A](#) [A](#) [A](#)



简体
繁体

Law of the People's Republic of China on the Protection of Women's Rights and Interests (2018 Amendment) [\[Effective\]](#)

中华人民共和国妇女权益保障法(2018修正) [\[现行有效\]](#)

[【法宝引证码】](#) [CLI.1.324963\(EN\)](#)

Issuing authority: [Standing Committee of the National People's Congress](#)

Document Number: Order No.16 of the President of the People's Republic of China

Date issued: 10-26-2018

Effective date: 10-26-2018

Level of Authority: [Laws](#)

Area of Law: [Civil Law](#)

Law of the People's Republic of China on the Protection of Women's Rights and Interests

中华人民共和国妇女权益保障法

(Adopted at the 5th Session of the Seventh National People's Congress on April 3, 1999, and amended for the first time according to the Decision of the 17th Session of the Standing Committee of the Tenth National People's Congress about Amending the Law of the People's Republic of China on the Protection of Women's Rights and Interests on August 28, 2005, and amended for the second time in accordance with the Decision of the Standing Committee of the National People's Congress to Amend Fifteen Laws Including the Law of the People's Republic of China on the Protection of Wild Animals adopted at the 6th Session of the Standing Committee of the Thirteenth National People's Congress of the People's Republic of China on October 26, 2018)

(1992年4月3日第七届全国人民代表大会第五次会议通过
根据2005年8月28日第十届全国人民代表大会常务委员会
第十七次会议《关于修改〈中华人民共和国妇女权益保障
法〉的决定》第一次修正 根据2018年10月26日第十三
届全国人民代表大会常务委员会第六次会议《关于修改
〈中华人民共和国野生动物保护法〉等十五部法律的决
定》第二次修正)

Contents

目 录

Chapter I General Provisions

第一章 总 则

Chapter II Political Rights

第二章 政治权利

Chapter III Rights and Interests Relating to Culture and Education

第三章 文化教育权益

Chapter IV Rights and Interests of Labor and Social Security

第四章 劳动和社会保障权益

Chapter V Rights and Interests Relating to Property

第五章 财产权益

Chapter VI Right of Person

第六章 人身权利

Chapter VII Rights and Interests Relating to Marriage and Family

第七章 婚姻家庭权益

Chapter VIII Legal Liability

第八章 法律责任

Chapter IX Supplementary Provisions

第九章 附 则

Chapter I General Provisions

第一章 总 则

Article 1 In accordance with [the Constitution](#) and the actual conditions of the country, this Law is formulated to protect women's lawful rights and interests, promote the equality between men and women and allow full play to women's role in socialist modernization.

第一条 为了保障妇女的合法权益, 促进男女平等, 充分发挥妇女在社会主义现代化建设中的作用, 根据[宪法](#)和我国的实际情况, 制定本法。

Article 2 Women shall enjoy equal rights with men in all aspects of political, economic, cultural, social and family life.

It is a basic state policy to realize equality between men and women. The state shall take necessary measures to gradually improve various systems for the protection of the rights and interests of women and to eliminate all kinds of discrimination against women.

The state shall protect the special rights and interests enjoyed by the women under the law.

It is prohibited to discriminate against, ill-treat, abandon or cruelly kill the women.

Article 3 The State Council shall work out a [Program for the Development of Chinese Women](#) and shall incorporate it into the plan on the national economy and social development.

Each local people's government at the county level shall, according to [the Program for the Development of Chinese Women](#), work out a plan on the development of women within its own administrative area and shall incorporate it into the plan on development of the national economy and social development.

Article 4 The protection of women's lawful rights and interests is a common responsibility of the whole society. State organs, public organizations, enterprises and institutions as well as urban and rural mass organizations of self-government at the grass-roots level shall, in accordance with the provisions of this Law and other relevant laws, protect women's rights and interests.

The state shall take effective measures to provide necessary conditions for women to exercise their rights according to law.

Article 5 The state shall encourage women to cultivate a sense of self-respect, self-confidence, self-reliance and self-strengthening, and to safeguard their own lawful rights and interests by utilizing law.

Women shall abide by the laws of the state, respect social morality and perform their obligations prescribed by law.

Article 6 The people's governments at all levels shall attach importance to and strengthen the protection of rights and interests of women.

The people's governments at and above the county level shall be the institutions responsible for the work of women and children. They shall organize, coordinate, guide and urge the relevant departments to conduct well the protection of the rights and interests of women."

The relevant departments of the people's governments at the county level or above shall do well the work of protection of the rights and interests of women within their respective scope of functions

Article 7 The All-China Women's Federation and women's federations at various levels shall, in accordance with the laws and [Charter of the All-China Women's Federation](#), represent and uphold the rights of women of all nationalities and all walks of life, and strive for the protection of women's rights and interests.

The labor unions and the communist youth leagues shall, according to their respective working scope, strive for the protection of the rights and interests of women.

Article 8 People's governments at various levels and relevant departments shall commend and award the organizations and individuals that have made notable achievements in the protection of women's lawful rights and interests.

Chapter II Political Rights

第二条 妇女在政治的、经济的、文化的、社会的和家庭的生活等各方面享有同男子平等的权利。

实行男女平等是国家的基本国策。国家采取必要措施，逐步完善保障妇女权益的各项制度，消除对妇女一切形式的歧视。

国家保护妇女依法享有的特殊权益。

禁止歧视、虐待、遗弃、残害妇女。

第三条 国务院制定[中国妇女发展纲要](#)，并将其纳入国民经济和社会发展规划。

县级以上地方各级人民政府根据[中国妇女发展纲要](#)，制定本行政区域的妇女发展规划，并将其纳入国民经济和社会发展计划。

第四条 保障妇女的合法权益是全社会的共同责任。国家机关、社会团体、企业事业单位、城乡基层群众性自治组织，应当依照本法和有关法律的规定，保障妇女的权益。

国家采取有效措施，为妇女依法行使权利提供必要的条件。

第五条 国家鼓励妇女自尊、自信、自立、自强，运用法律维护自身合法权益。

妇女应当遵守国家法律，尊重社会公德，履行法律所规定的义务。

第六条 各级人民政府应当重视和加强妇女权益的保障工作。

县级以上人民政府负责妇女儿童工作的机构，负责组织、协调、指导、督促有关部门做好妇女权益的保障工作。

县级以上人民政府有关部门在各自的职责范围内做好妇女权益的保障工作。

第七条 中华全国妇女联合会和地方各级妇女联合会依照法律和[中华全国妇女联合会章程](#)，代表和维护各族各界妇女的利益，做好维护妇女权益的工作。

工会、共产主义青年团，应当在各自的工作范围内，做好维护妇女权益的工作。

第八条 对保障妇女合法权益成绩显著的组织和个人，各级人民政府和有关部门给予表彰和奖励。

Article 9 The state shall guarantee that women enjoy equal political rights with men.

Article 10 Women have the right to conduct state affairs, manage economic and cultural undertakings and administer social affairs through various channels and in various ways.

When any law, rule, regulation or public policy relating to the important rights and interests of women is formulated, the opinions of the women's federations shall be taken into account.

The women and women's organizations shall be entitled to put forward opinions and proposals on the protection of rights and interests of women to the state organs at all levels.

Article 11 Women shall enjoy the equal right, with men, to vote and to stand for election.

Among deputies to the National People's Congress and local people's congresses at various levels, there shall be an appropriate number of women deputies and the state shall take measures to gradually raise the proportion thereof.

Among the members of the residents' committees and villagers' committees, there shall be an appropriate number of women members.

Article 12 The state shall actively train and select female cadres.

State organs, public organizations, enterprises and public institutions must, in training, selecting and appointing cadres, adhere to the principle of equality between men and women, and shall ensure an appropriate number of female cadres for the leading posts.

The state shall pay attention to the training and selection of female cadres of minority nationalities.

Article 13 The All-China Women Federation and the women's federations shall, on behalf of the women, actively participate in the democratic decision-making, management and supervision of the state and social affairs.

Women's federations at various levels and their member organizations may recommend female cadres to state organs, public organizations, enterprises or institutions.

Article 14 The departments concerned shall listen to and accept criticisms or rational suggestions regarding the protection of women's rights and interests; with respect to complaints or charges against, or exposure of infringement upon women's rights and interests, the departments concerned must ascertain the facts, and be responsible for the disposition thereof; no organization or individual may suppress such complaints, charges or exposures or resort to retaliation.

Chapter III Rights and Interests Relating to Culture and Education

Article 15 The state shall guarantee that women enjoy equal rights with men with respect to culture and education.

Article 16 Schools and departments concerned shall, by implementing the relevant regulations of the state, guarantee that women enjoy equal rights with men in such aspects as starting school, entering a higher school, job assignment upon graduation, conferment of academic degrees and dispatch for study abroad.

When a school recruits students, it shall not, except for some particular specialties, refuse to recruit the female students or raise the standards on the recruitment of female students for the reason of gender.

第九条 国家保障妇女享有与男子平等的政治权利。

第十条 妇女有权通过各种途径和形式, 管理国家事务, 管理经济和文化事业, 管理社会事务。

制定法律、法规、规章和公共政策, 对涉及妇女权益的重大问题, 应当听取妇女联合会的意见。

妇女和妇女组织有权向各级国家机关提出妇女权益保障方面的意见和建议。

第十一条 妇女享有与男子平等的选举权和被选举权。

全国人民代表大会和地方各级人民代表大会的代表中, 应当有适当数量的妇女代表。国家采取措施, 逐步提高全国人民代表大会和地方各级人民代表大会的妇女代表的比例。

居民委员会、村民委员会成员中, 妇女应当有适当的名额。

第十二条 国家积极培养和选拔女干部。

国家机关、社会团体、企事业单位培养、选拔和任用干部, 必须坚持男女平等的原则, 并有适当数量的妇女担任领导成员。

国家重视培养和选拔少数民族女干部。

第十三条 中华全国妇女联合会和地方各级妇女联合会代表妇女积极参与国家和社会事务的民主决策、民主管理和民主监督。

各级妇女联合会及其团体会员, 可以向国家机关、社会团体、企事业单位推荐女干部。

第十四条 对于有关保障妇女权益的批评或者合理建议, 有关部门应当听取和采纳; 对于有关侵害妇女权益的申诉、控告和检举, 有关部门必须查清事实, 负责处理, 任何组织或者个人不得压制或者打击报复。

第三章 文化教育权益

第十五条 国家保障妇女享有与男子平等的文化教育权利。

第十六条 学校和有关部门应当执行国家有关规定, 保障妇女在入学、升学、毕业分配、授予学位、派出留学等方面享有与男子平等的权利。

学校在录取学生时, 除特殊专业外, 不得以性别为由拒绝录取女性或者提高对女性的录取标准。

Article 17 Schools shall, in line with the characteristics of female adolescents, take measures in respect of education, management and facilities so as to ensure their sound development in body and in mind.

Article 18 Parents or other guardians must perform their duty of ensuring that female school-age children or adolescents receive the compulsory education.

.

第十七条 学校应当根据女性青少年的特点,在教育、管理、设施等方面采取措施,保障女性青少年身心健康发展。

第十八条 父母或者其他监护人必须履行保障适龄女性儿童少年接受义务教育的义务。

除因疾病或者其他特殊情况经当地人民政府批准的以外,对不送适龄女性儿童少年入学的父母或者其他监护人,由当地人民政府予以批评教育,并采取有效措施,责令送适龄女性儿童少年入学。

.

Dear visitor, you are attempting to view a subscription-based section of lawinfochina.com. If you are already a subscriber, please [login](#) to enjoy access to our databases. If you are not a subscriber, please [subscribe](#). You can purchase a single article through [Online Pay](#) to immediately view and download this document. Should you have any questions, please contact us at:

+86 (10) 8268-9699 or +86 (10) 8266-8266 (ext. 153)

Mobile: +86 133-1157-0712

Fax: +86 (10) 8266-8268

database@chinalawinfo.com

您好: 您现在要进入的是北大法律英文网会员专区, 如您是我们英文用户可直接 [登录](#), 进入会员专区查询您所需要的信息; 如您还不是我们的英文用户, 请[注册](#)并交纳相应费用成为我们的英文会员; 您也可通过[网上支付](#)进行单篇购买, 支付成功后即可立即查看本篇法规。如有问题请来电咨询;

Tel: +86 (10) 82689699, +86 (10) 82668266 ext. 153

Mobile: +86 13311570712

Fax: +86 (10) 82668268

E-mail: database@chinalawinfo.com

【法宝引证码】 CLI.1.324963(EN) 北大法宝www.lawinfochina.com

Message: Please kindly comment on the present translation.

Confirmation Code:



Click image to reset code!

Translations are by lawinfochina.com, and we retain exclusive copyright over content found on our website except for content we publish as authorized by respective copyright owners or content that is publicly available from government sources.

Due to differences in language, legal systems, and culture, English translations of Chinese law are for reference purposes only. Please use the official Chinese-language versions as the final authority. lawinfochina.com and its staff will not be directly or indirectly liable for use of materials found on this website.

We welcome your comments and suggestions, which assist us in continuing to improve the quality of our materials.